

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #11	CCRB Case #: 201506167	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 07/26/2015 1:46 AM	Location of Incident: In front of § 87(2)(b)	Precinct: 113	18 Mo. SOL 1/26/2017	EO SOL 1/26/2017	
Date/Time CV Reported Mon, 07/27/2015 1:08 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/27/2015 1:08 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Antoinette Sylvester	28990	927249	113 PCT
2. An officer			
3. SGT Jason Kanner	05282	945380	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Gregory Reisert	14672	957077	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Antoinette Sylvester	Discourtesy: PO Antoinette Sylvester spoke discourteously to § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.SGT Jason Kanner	Abuse: Sgt. Jason Kanner authorized the entry of the backyard of § 87(2)(b) in Queens.	§ 87(2)(b)
C.SGT Jason Kanner	Abuse: Sgt. Jason Kanner authorized the seizure of § 87(2)(b) and § 87(2)(b)'s property.	§ 87(2)(b)
D. An officer	Abuse: An officer damaged § 87(2)(b) and § 87(2)(b)'s property.	§ 87(2)(b)
E.POF Antoinette Sylvester	Abuse: PO Antoinette Sylvester refused to provide her shield number to § 87(2)(b)	§ 87(2)(b)

Case Summary

On July 26, 2015, § 87(2)(b) was hosting a house party for 80 to 100 people, including § 87(2)(b) to celebrate his birthday at § 87(2)(b) in Queens. § 87(2)(b) had several amplifiers set up in his backyard to play music for the party. At 1:50 a.m., PO Antoinette Sylvester and PO Gregory Reisert of the 113th Precinct responded to a disorderly group/ noise complaint (Board Review 01 and 02). PO Sylvester and PO Reisert spoke to § 87(2)(b) about the noise level at the party. The officers called for assistance. § 87(2)(b) alleged that while the officers spoke to him, PO Sylvester said, “I’m going to shut this shit down” (**Allegation A**). Sgt. Jason Kanner, PO Daniel Connors and PO Richard Ernyey, all of the 113th Precinct, among other units and officers, responded to the scene. § 87(2)(b) was issued a summons for § 87(2)(b) (Board Review 03). The officers left the scene without taking any further action. At 4 a.m., PO Sylvester and PO Reisert responded to § 87(2)(b)’s house again. The officers called for assistance again, prompting Sgt. Kanner, PO Connors and PO Ernyey, among other units and officers, to respond again. Sgt. Kanner instructed the other officers to enter the backyard of § 87(2)(b)’s house, shut down the party, and remove the amplifying equipment, including seizing three amplifiers (**Allegations B and C**) (Board Review 05). When the officers removed the amplifier, an unidentified officer allegedly picked up an equalizer and threw it on the ground and/or in the garage (**Allegation D**). § 87(2)(b) asked PO Sylvester for her shield number, but she allegedly ignored his request (**Allegation D**). Later, § 87(2)(b) approached PO Sylvester, who was on her cell phone, and said, “Excuse me, ma’am.” PO Sylvester allegedly responded, “Get the fuck out of my face; I don’t want to fucking talk to you” (**Allegation A cont’d**). While § 87(2)(b) was telling Sgt. Kanner that PO Sylvester was being disrespectful, PO Sylvester allegedly said to Sgt. Kanner, “Don’t talk to these motherfuckers. Get me the fuck up outta here; get me the fuck up outta here” (**Allegation A cont’d**). At 4:25 a.m., PO Reisert issued § 87(2)(b) a second summons for § 87(2)(b) (Board Review 04). The officers then left the scene.

§ 87(2)(b) provided a short video clip from the incident. The video clip shows Sgt. Kanner, PO Sylvester, PO Reisert and other officers in § 87(2)(b)’s backyard, but does not capture any other allegations (Board Review 06).



201506167.mp4

Mediation, Civil and Criminal Histories

- On July 29, 2015, § 87(2)(b) was offered mediation during his CCRB interview. § 87(2)(b) rejected mediation § 87(2)(b).
- On October 27, 2015, an inquiry was sent to the New York City Comptroller’s Office regarding whether § 87(2)(b) or § 87(2)(b) has filed a notice of claim regarding this incident. Results are pending and will be included in the case file upon their receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b)'s second with the CCRB. § 87(2)(b). This complaint is § 87(2)(b)'s first with the CCRB (Board Review 08).
- PO Sylvester has been a member of the NYPD for fifteen years. Prior to this case, there were only two CCRB allegations against her, involving CCRB case number 200412592. Both allegations were closed as unfounded. Sgt. Kanner has been a member of the NYPD for seven years. There has been no substantiated CCRB allegation against him (Board Review 09).

Findings and Recommendations

Explanation of Subject Officer Identification

- It was alleged that an officer either threw an amplifier to the ground or back into the garage, damaging it. § 87(2)(g)

Allegation A—Discourtesy: PO Antoinette Sylvester spoke discourteously to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) said that the first time PO Reisert and PO Sylvester responded to his house during his party, he was talking to the officers about why they were there, and PO Sylvester allegedly said, “I’m going to shut this shit down.” § 87(2)(b) said that when the officers responded to the location for the second time, he found PO Sylvester in front of the location, talking on her cell phone. He alleged that when he approached PO Sylvester, she told him, “Get the fuck out of my face; I don’t want to fucking talk to you.” § 87(2)(b) said that he then went back to Sgt. Kanner to tell him that PO Sylvester was being disrespectful, at which point PO Sylvester approached and told Sgt. Kanner, “Don’t talk to these motherfuckers. Get me the fuck up outta here; get me the fuck up outta here!” The video footage of the incident provided by § 87(2)(b) does not capture any of these allegations.

Although PO Sylvester acknowledged that § 87(2)(b) was still standing near her and PO Reisert when the call for assistance was made, she denied saying, “I’m going to shut this shit down.” PO Sylvester recalled speaking on her cell phone at various points during the night, and she believed that multiple civilians may have followed her while she talked on the phone. She said she told one or more of these people to get away, but she did not actually look at these people or see their faces. She did not recall telling any civilian, “Get the fuck out of my face; I don’t want to fucking talk to you.” The only civilian that PO Sylvester recalled talking to her when she was seated in the police vehicle was a female, who was identified via the investigation to be § 87(2)(b)'s sister, § 87(2)(b). PO Sylvester did not recall telling any officer, “Don’t talk to these motherfuckers. Get me the fuck up outta here; get me the fuck up outta here!” PO Sylvester did not recall using any profanity during any of her visits to the location.

PO Reisert and Sgt. Kanner denied that PO Sylvester made any of the alleged discourteous remarks during the incident. They did not recall witnessing PO Sylvester engaged in any argument with a civilian, or demonstrating any particular frustration. § 87(2)(g)

§ 87(2)(g)

Allegation B—Abuse of Authority: Sgt. Jason Kanner authorized the entry into the backyard of § 87(2)(b) in Queens.

Allegation C—Abuse of Authority: Sgt. Jason Kanner authorized the seizure of § 87(2)(b) and § 87(2)(b)'s property.

It is not in dispute that § 87(2)(b) held a house party for 80 to 100 guests and had three amplifiers and officers responded to complaints twice, two hours apart.

PO Sylvester, PO Reisert and Sgt. Kanner all testified that they personally heard the music playing at the location. Sgt. Kanner and PO Sylvester testified that the music was just as loud as it was the first time the officers responded to the location, and PO Reisert testified that it was even louder. As a result of the amplified music and large crowd, Sgt. Kanner made the decision to remove the amplifiers from the scene, and instructed the officers to enter the backyard and remove them. No officer entered the backyard until Sgt. Kanner issued this instruction. After the amplifiers were removed, the officers left the scene.

Patrol Guide Procedure 214-23, pertaining to unnecessary noise violations, defines noise as unreasonable when it either disturbs the peace, comfort or repose; or endangers the health or safety of a reasonable person of normal sensitivities. Some factors for police officers' consideration when managing instances of unreasonable noise are the character of the neighborhood in question, the time of day, and whether the party responsible for the noise has been asked to cease or lower the sound level, but has refused; or been warned in an attempt to correct the condition. In the event of unreasonable noise generated by sound reproduction devices, including sound amplifying systems, the Patrol Guide instructs officers to issue summons to eligible parties, and seize the pertinent sound reproduction device (Board Review 10).

§ 87(2)(g)

§ 87(2)(g)

Allegation D—Abuse of Authority: An officer damaged § 87(2)(b) and § 87(2)(b)'s property.

§ 87(2)(b) alleged that while officers were seizing the amplifiers, an officer threw a piece of equipment to the ground and it did not work when he had it returned. § 87(2)(b) stated that he saw the officer throw the piece of equipment back into the garage. He was uncertain if it worked when it was returned. Neither § 87(2)(b) nor § 87(2)(b) provided any photographic or documentary proof of the alleged damage to the equalizer, or any resulting repairs. Nothing similar is captured in the video footage provided by § 87(2)(b)

PO Reisert, PO Sylvester and Sgt. Kanner all denied that any officer on the scene threw any property in this manner. All of the officers testified that they did not hear anyone on the scene complain about any damage to their property

§ 87(2)(g)

§ 87(2)(g)

Allegation E—Abuse of Authority: PO Antoinette Sylvester refused to provide her shield number to § 87(2)(b)

It is not in dispute that § 87(2)(b)'s sister, § 87(2)(b) asked PO Sylvester for her shield number, which was provided and she wrote it down, and provided it to § 87(2)(b)

§ 87(2)(b) said that the amplifiers were being seized, he asked PO Sylvester for her shield number, and she ignored his request. PO Sylvester only recalled § 87(2)(b) asking for this information. PO Sylvester did not recall § 87(2)(b) asking for her shield number at any point. § 87(2)(b) who was present when the amplifiers were being seized, did not hear § 87(2)(b) ask for PO Sylvester's shield number, and believed that § 87(2)(b) had that information. Neither PO Reisert nor Sgt. Kanner heard any civilian request PO Sylvester's shield number, or PO Sylvester refuse to provide this information.

§ 87(2)(g)

Squad: 11

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date